House File 192 - Introduced

HOUSE FILE 192
BY LOHSE

A BILL FOR

An Act relating to the responsibility and liability of property owners for public places in cities and including effective date provisions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 364.12, subsection 2, paragraph c, Code 2025, is amended to read as follows:

c. The abutting property owner may be required by ordinance to maintain all property outside the lot and property lines and inside the curb lines upon the public streets, except that the property owner shall not be required to remove diseased trees or dead wood on the publicly owned property or right-of-way. The abutting property owner may be liable for damages caused by the failure to use reasonable care in maintaining such property if required by ordinance.

Sec. 2. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.

EXPLANATION

The inclusion of this explanation does not constitute agreement with the explanation's substance by the members of the general assembly.

This bill relates to the responsibility and liability of an abutting property owner for public places in a city such as sidewalks. Under current law, an abutting property owner may be required by a city ordinance to maintain public sidewalks or other property between the property line and the curb line. The bill adds that an abutting property owner may be liable if the property owner fails to use reasonable care in maintaining sidewalks or other property between the property line and the curb line if required by a city ordinance. The bill takes effect upon enactment.